

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1443

By: Daniels of the Senate

and

Caldwell (Chad) of the
House

11 An Act relating to health benefit plans; defining
12 terms; requiring certain health benefit plans to
13 consider certain factors when determining certain
14 payments for certain services; requiring certain
15 payments to be made in certain situations; providing
16 for codification; and providing an effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 7501 of Title 36, unless there
20 is created a duplication in numbering, reads as follows:

21 A. As used in this act:

22 1. "Anesthesia services" means the same as defined by the
23 prevailing medical coding and billing standards in the professional
24 medical billing community, including the most recent version of the

1 Current Procedural Terminology (CPT) code books, the Medicare Claims
2 Processing Manual, and American Society of Anesthesiologists
3 guidance;

4 2. "Base unit" means the value for each anesthesia code that
5 reflects all activities other than anesthesia time including usual
6 preoperative and postoperative visits, the administration of fluids
7 and blood incident to anesthesia care, and monitoring services;

8 3. "Health benefit plan" means any plan that provides benefits
9 for medical or surgical expenses or disease management incurred as a
10 result of a health condition, accident, or sickness, including an
11 individual, group, blanket, or franchise insurance policy or
12 insurance agreement, a group hospital service contract, or an
13 individual or group evidence of coverage or similar coverage
14 document that is issued by:

- 15 a. an insurance company,
- 16 b. a group hospital service corporation,
- 17 c. a health maintenance organization,
- 18 d. an approved nonprofit health corporation,
- 19 e. a small employer health benefit plan, or
- 20 f. any other health insurance company whose primary
21 purpose is to provide benefits for medical or surgical
22 expenses as a result of a health condition, accident,
23 sickness, or disease.

1 Health benefit plan does not include a plan offered by a contracted
2 entity that covers Medicaid members under the Ensuring Access to
3 Medicaid Act; and

4 4. "Physical status modifiers" means classifications set forth
5 in the American Society of Anesthesiologists (ASA) Physical Status
6 Classification System.

7 B. All health benefit plans shall consider the following
8 factors in determining necessity of services and calculation of
9 benefit payment amounts for anesthesia services:

10 1. The assessment of patient physical status, including the use
11 of physical status modifiers as determined by a participant's
12 treating physician or health care provider; and

13 2. The complexity and urgency of care, as determined by a
14 participant's treating physician or health care provider.

15 C. Physical status modifiers shall be paid according to the
16 corresponding base unit values to the treating physician or health
17 care provider if the patient is ranked in one of the three following
18 categories:

19 1. ASA III: A patient with severe systemic disease. Modifier
20 P3. Base Unit Value 1;

21 2. ASA IV: A patient with severe systemic disease that is a
22 constant threat to life. Modifier P4. Base Unit Value 2; or

23 3. ASA V: A moribund patient who is not expected to survive
24 without the operation. Modifier P5. Base Unit Value 3.

SECTION 2. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
OVERSIGHT, dated 04/20/2026 - DO PASS.